



Ministry of Tribal Affairs · Government of India

The Scheduled Tribes and Other Traditional Forest Dwellers

(Recognition of Forest Rights) Act, 2006

Community Forest Resource (CFR) Claim under Section 3(1)(i)

Documents required for a Community Forest Resource claim

Complete set carried by the Forest Rights Committee to the Gram Sabha and forwarded to the Sub-Divisional Level Committee

1. Claim form and its annexures

Document	What it contains	Provision
Form C	Claim form for rights to community forest resource; village, Gram Panchayat, tehsil, district	Sec. 3(1)(i); Rule 11(1), 4(a)
Gram Sabha member sheet	Names of members with Scheduled Tribe or Other Traditional Forest Dweller status against each; presence of a few ST or OTFD is sufficient to make the claim	Form C, item 5
Community forest resource map	Location and landmarks within the traditional or customary boundary, or seasonal use of landscape for pastoral communities; need not match existing legal boundaries	Form C, item 5; Rule 12(1)(g)
Khasra or compartment numbers	Only if any and if known	Form C, item 6
Bordering villages	Including any sharing of resources and responsibilities	Form C, item 7
Schedule of evidence	Numbered list of every item relied upon	Form C, item 8; Rule 13
Signature or thumb impression	Of the claimant or claimants	Form C

2. General evidence — at least two items [Rule 11(1)(a) and Rule 13(3)]

Rule	Evidence
13(1)(a)	Public documents and Government records: gazetteers, census, survey and settlement reports, maps, satellite imagery, working plans, management plans, micro-plans, forest enquiry reports, record of rights, pattas or leases, orders, notifications, circulars, resolutions
13(1)(b)	Government authorised documents: voter identity card, ration card, passport, house tax receipts, domicile certificates
13(1)(c)	Physical attributes: houses, huts and permanent improvements such as levelling, bunds and check dams
13(1)(d)	Quasi-judicial and judicial records, including court orders and judgments
13(1)(e)	Research studies and documentation of customs and traditions having the force of customary law, by reputed institutions
13(1)(f)	Records, maps, privileges or concessions from erstwhile princely States, provinces or other intermediaries
13(1)(g)	Traditional structures establishing antiquity: wells, burial grounds, sacred places
13(1)(h)	Genealogy tracing ancestry to persons named in earlier land records
13(1)(i)	Statement of elders other than claimants, reduced in writing

3. Community forest resource evidence [Rule 13(2)]

Rule	Evidence
13(2)(a)	Community rights such as nistar, by whatever name called
13(2)(b)	Traditional grazing grounds; areas for roots, tubers, fodder, wild edible fruits and other minor forest produce; fishing grounds; irrigation systems; sources of water for human or livestock use; medicinal plant territories of herbal practitioners
13(2)(c)	Remnants of structures built by the community, sacred trees, groves, ponds or riverine areas, burial or cremation grounds
13(2)(d)	Government records or earlier classification of a current reserve forest as protected forest, gochar or other village common land, or nistari forest
13(2)(e)	Earlier or current practice of traditional agriculture

4. Records prepared and signed in the village

Record	Provision
Forest Rights Committee constitution: ten to fifteen members, at least two-thirds Scheduled Tribes, not less than one-third women; chairperson and secretary intimated to the SDLC	Rule 3(1), 3(2)
Notice calling for claims, with the date of display and the three-month window	Rule 11(1)(a)
Intimation of the CFR determination date to adjoining Gram Sabhas and to the SDLC	Rule 11(1)(b)
Written acknowledgement of every claim received	Rule 11(3)
Request to the SDLC for forest and revenue maps and electoral rolls	Rule 6(b)
Written request to the record-holding office for authenticated copies	Rule 12(4)
Intimation of the site visit to the claimant and to the Forest Department	Rule 12(1)
Field verification proceeding signed by the Forest and Revenue officials with designation, date and comments; or a formally recorded absence	Rule 12(1)(a)–(e); Rule 12A(1), (2)
Customary boundary delineation record naming the elders who took part	Rule 12(1)(f)
Findings of the Forest Rights Committee placed before the Gram Sabha	Rule 12(2)
Gram Sabha meeting notice, attendance and quorum record: one-half of members, one-third of those present women, fifty per cent of claimants or representatives	Rule 4(2); Rule 11(5)
Gram Sabha resolution approving the Form C claim and the map, by simple majority	Rule 12(1)(g)
Joint meeting record of the concerned Forest Rights Committees where boundaries conflict	Rule 12(3)
Forwarding of the resolution with the claim and the map to the SDLC	Sec. 6(1); Rule 11(5)

5. Documents received from the authorities

Document	Issued by	Provision
Forest and revenue maps and electoral rolls	Sub-Divisional Level Committee	Rule 6(b)
Block or tehsil-wise draft record of proposed forest rights	SDLC, through the Sub-Divisional Officer	Rule 6(i), 6(j)
Order of remand, modification or rejection, with detailed written reasons	SDLC or District Level Committee	Rule 12A(6), (7), (10)
Title to Community Forest Resources, Annexure IV	District Level Committee	Rule 8(i)
Certified copy of the record of the right to community forest resource	District Level Committee	Rule 8(i)
Final map of the vested forest land and the record incorporation entry	Revenue and Forest Departments	Rule 12A(9)



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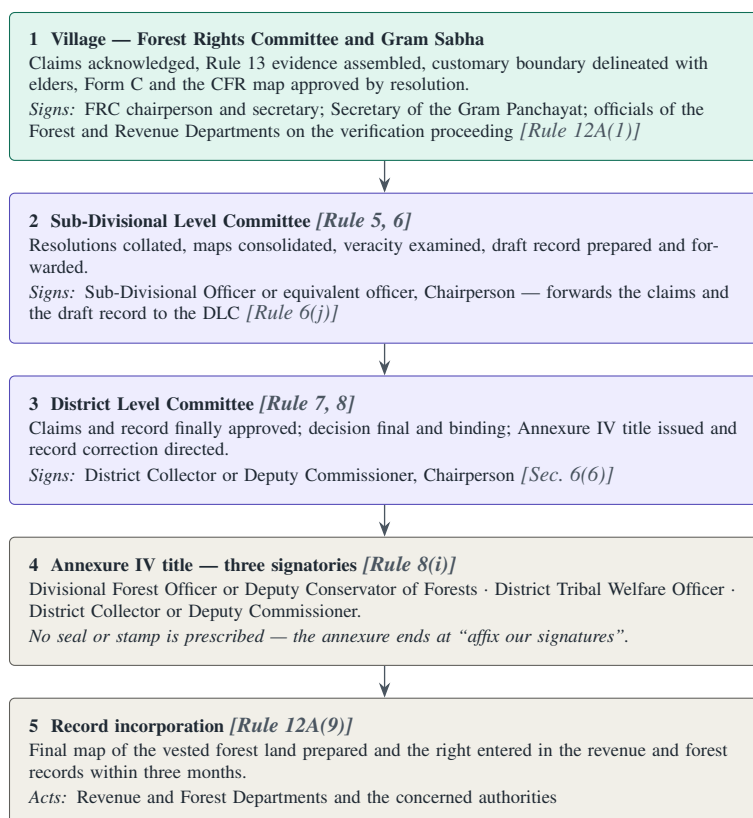
Officers and authorities at each stage of the claim

Designations as given in the Rules, 2007 as amended in 2012

Stage	Officers and members	Provision
Gram Sabha	All adult members of the village; convened by the Gram Panchayat. The Secretary of the Gram Panchayat also acts as Secretary to the Gram Sabha	Sec. 2(g), 6(1); Rule 3(1), 11(6)
Forest Rights Committee	Ten to fifteen members elected by the Gram Sabha, at least two-thirds Scheduled Tribes and not less than one-third women, with a chairperson and a secretary. A member who is himself a claimant does not take part in verifying his own claim	Rule 3(1)–(3)
Field verification	Officials of the Forest and Revenue Departments remain present and sign the proceedings with their designation, date and comments. Second absence makes the Gram Sabha decision final	Rule 12A(1), (2)
Sub-Divisional Level Committee	Sub-Divisional Officer or equivalent officer — Chairperson; Forest Officer in charge of a sub-division or equivalent officer — member; three Block or Tehsil level Panchayat members nominated by the District Panchayat, at least two Scheduled Tribes and one woman; an officer of the Tribal Welfare Department in charge of the sub-division	Sec. 6(3); Rule 5
District Level Committee	District Collector or Deputy Commissioner — Chairperson; concerned Divisional Forest Officer or Deputy Conservator of Forest — member; three District Panchayat members, at least two Scheduled Tribes and one woman; an officer of the Tribal Welfare Department in charge of the district. The Secretary of the Committee records the reasons where no CFR right is recognised in a village	Sec. 6(5), 6(6); Rule 7, 12B(4)
State Level Monitoring Committee	Chief Secretary — Chairperson; Secretaries of Revenue, Tribal or Social Welfare, Forest and Panchayati Raj; Principal Chief Conservator of Forests; three Scheduled Tribe members of the Tribes Advisory Council; Commissioner, Tribal Welfare — Member-Secretary	Sec. 6(7); Rule 9

Claim workflow

Signing officer named at every stage



Annexure IV — signature block as printed

Title to Community Forest Resources [Rule 8(i)]

We, the undersigned, hereby, for and on behalf of the Government affix our signatures to confirm the community forest resource

Divisional Forest Officer / Deputy Conservator of Forests	District Tribal Welfare Officer
District Collector / Deputy Commissioner	

The title is held by the Gram Sabha. No conditions may be imposed on the right beyond those in the Act and the Rules. A certified copy of the record of the right is furnished to the Gram Sabha or the community [Rule 8(i)].